

# ORS 811.028

## Failure to stop and remain stopped for pedestrian

- penalty

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- (1) The driver of a vehicle commits the offense of failure to stop and remain stopped for a pedestrian if the driver does not stop and remain stopped for a pedestrian when the pedestrian is:
- (a) Proceeding in accordance with a traffic control device as provided under ORS 814.010 (Appropriate responses to traffic control devices) or crossing the roadway in a crosswalk; **and**
  - (b) In any of the following locations:
    - (A) In the lane in which the driver's vehicle is traveling;
    - (B) In a lane adjacent to the lane in which the driver's vehicle is traveling;
    - (C) In the lane into which the driver's vehicle is turning;
    - (D) In a lane adjacent to the lane into which the driver's vehicle is turning, if the driver is making a turn at an intersection that does not have a traffic control device under which a pedestrian may proceed as provided under ORS 814.010 (Appropriate responses to traffic control devices); **or**
    - (E) Less than six feet from the lane into which the driver's vehicle is turning, if the driver is making a turn at an intersection that has a traffic control device under which a pedestrian may proceed as provided under ORS 814.010 (Appropriate responses to traffic control devices).
- (2) For the purpose of this section, a bicycle lane or the part of a roadway where a vehicle stops, stands or parks that is adjacent to a lane of travel is considered to be part of that adjacent lane of travel.
- (3) This section does not require a driver to stop and remain stopped for a pedestrian under any of the following circumstances:
- (a) Upon a roadway with a safety island, if the driver is proceeding along the half of the roadway on the far side of the safety island from the pedestrian; **or**
  - (b) Where a pedestrian tunnel or overhead crossing has been provided at or near a crosswalk.
- (4) For the purposes of this section, a pedestrian is crossing the roadway in a crosswalk when any part or extension of the pedestrian, including but not limited to any part of the pedestrian's body, wheelchair, cane, crutch or bicycle, moves onto the roadway in a crosswalk with the intent to proceed.
- (5) The offense described in this section, failure to stop and remain stopped for a pedestrian, is a Class B traffic violation. [2005 c.746 §2; 2011 c.507 §1]

Note: 811.028 (Failure to stop and remain stopped for pedestrian) was added to and made a part of the Oregon Vehicle Code by legislative action but was not added to ORS chapter 811 or any series therein. See Preface to Oregon Revised Statutes for further explanation.

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Location: [https://oregon.public.law/statutes/ors\\_811.028](https://oregon.public.law/statutes/ors_811.028)

Original Source: Section 811.028 — Failure to stop and remain stopped for pedestrian; penalty, [https://www.oregonlegislature.gov/bills\\_laws/ors/ors811.html](https://www.oregonlegislature.gov/bills_laws/ors/ors811.html) (last accessed May 10, 2025).